

22STCP02799 22STCP02799

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 22STCP02799 Hearing Date: July 23, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 23, 2026

Case Name: Wen v. Cruz, et al.

Case No.: 22STCP02799

Matter: Motion to Dismiss

Moving Party: Defendants Janus Development, LLC, Habitat Partners Inc., and Joshua

Krom

Responding Party: Plaintiff Yu Wen

Notice: OK

Ruling: The Motion is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is a landlord-tenant and roommate dispute filed by a pro per litigant on July 27, 2022.

Defendants Janus Development, LLC, Habitat Partners Inc., and Joshua Krom now seek to dismiss this action because they were not served within 3 years.

"The summons and complaint shall be served upon a defendant within three years after the action is commenced against the defendant" (CCP § 583.210(a)), and "If service is not made in an action within the time prescribed in this article: . . . (2) The action shall be dismissed by the court on its own motion or on motion of any person interested in the action, whether named as a party or not, after notice to the parties. (b) The requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute." (CCP § 583.250.)

"In computing the time within which service must be made pursuant to this article, there shall be excluded the time during which any of the following conditions existed: . . . (d) Service, for any other reason, was impossible, impracticable, or futile due to causes beyond the plaintiff's control. Failure to discover relevant facts or evidence is not a cause beyond the plaintiff's control for the purpose of this subdivision." (CCP § 583.240.)

Plaintiff filed an opposition on July 10, 2026, arguing that Defendants' timeline is a narrow, technical chronology, highlighting heavy ongoing discovery and litigation activity by Defendants, and alternatively requesting a continuance to gather further evidence of diligence. Defendants filed their reply on July 14, 2026.

The complaint was filed on July 27, 2022. Accordingly, the three-year statutory deadline to serve Defendants expired on July 27, 2025. Even factoring in a potential court-ordered extension referenced by the parties through July 30, 2025, Plaintiff's service remains untimely as a matter of law. Plaintiff's proofs of service establish that substituted service was attempted on July 26, 2025, by leaving copies at a commercial mail receiving agency and mailing copies on that same date. Under CCP § 415.20(b), substituted service is explicitly "deemed complete on the 10th day after the mailing." Consequently, Plaintiff's service was not legally complete until August 5, 2025—which falls outside both the statutory three-year window and the purported July 30, 2025 extension. Under California law, the physical act of attempting service or mailing within the three-year window does not suffice; service must be legally complete before the statutory timeline expires (*Highland Stucco & Lime, Inc. v. Superior Court* (1981) 119 Cal.App.3d 99, 103–104).

Plaintiff's opposition argues that the Court should address difficulties, service obstacles, and individual diligence under Code of Civil Procedure section 583.240, which excludes periods where service was impossible, impracticable, or futile due to causes beyond a plaintiff's control.

However, Plaintiff bears the evidentiary burden to establish these exceptions (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1439–1440). Plaintiff failed to submit any declarations, affidavits, or competent documentary evidence alongside the opposition to substantiate a specific period of tolling. Speculative or generalized assertions in a memorandum of points and authorities do not constitute competent evidence to satisfy this burden.

Plaintiff objects to dismissal on the ground that Defendants have actively litigated the case, propounded extensive discovery, and filed discovery-enforcement motions—including a motion to deem matters admitted scheduled just one day prior to this hearing. Plaintiff argues that this post-motion litigation pressure is prejudicial and inconsistent with a request for dismissal.

Long-standing California authority establishes that a defendant's general appearance or participation in discovery after the statutory three-year period has run does not waive or cure a plaintiff's failure to complete timely service (*Busching v. Superior Court* (1974) 12 Cal.3d 44, 52–53; *Weatherby v. Van Diest* (1991) 233 Cal.App.3d 506, 511). Because the service defect occurred and became permanent in August 2025, subsequent litigation behavior required to preserve defense positions under looming trial deadlines cannot retroactively validate the untimely service. Under section 583.250, prejudice to the defendant is not an element of the statutory mandate, and the Court lacks equitable discretion to balance hardships once the deadline has passed.

Plaintiff alternatively requests a continuance of the hearing to organize and submit supplementary service logs and evidence of diligence.

This request is denied. The critical dates concerning the filing of the case and the physical execution of substituted service have been known to Plaintiff since the proofs of service were executed nearly a year ago. A continuance cannot change the legally undisputed reality that substituted service under section 415.20 was completed in August 2025, past the boundary of the statutory window. Given the mandatory nature of section 583.250 and the absence of a threshold showing of a viable statutory exclusion, delaying resolution is unwarranted.

For all these reasons, the Motion to Dismiss is granted.

Moving party to give notice.